

CONTROLLED UNCLASSIFIED INFORMATION

Limited Sources Justification and Approval (J&A)

Contracting Activity: 21 CONS/PKA

Purchase Request / Local ID Number:

Program / Project (and PE, if applicable): 10ZiG NOS Zero Client

Program Type (PEO or Other Contracting): Operational Contracting

Authority: Multiple Award Schedule Program ([FAR 8.405-6](#))

Estimated Contract Cost (including options):

Is this a [Bridge Action](#)?

☐ Yes

☒ No

Description of Limitation:

Space Security Defense Program (SSDP) and Space Warfighting Analysis Center (SWAC) at Peterson Space Force Base, Colorado, require the purchase of 10ZiG Zero Clients for VMWare.

COORDINATION ([DAFFARS 5306.304\(a\)](#))

Date	Project Lead / Program Mgr / Requiring Activity	Signature
Date	Contracting Officer	Signature
Date	Competition Advocate	Signature

APPROVAL ([DAFFARS 5306.304\(a\)](#))

Date	Contracting Officer	Signature
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(See guidance at the end of this document for completing the following sections.)

I. Contracting Activity.

21st Contracting Squadron at Peterson Space Force Base

Limited Sources Justification

II. Nature and/or description of the action being processed.

Considering the results from the Market Research, we have reasonable expectation of at least five (5) businesses with a Contractor Teaming Agreement with Carahsoft on GSA 2GIT to quote on this requirement. As such, this requirement will be competed as Full and Open Competition after limiting sources. The resulting contract will be a single award firm-fixed price delivery order to a GSA 2GIT contract holder or a CTA with the GSA 2GIT holder IAW FAR 9.603. The required delivery date is on or before 31 March 2025.

III. Description of supplies/services required to meet agency needs.

10ZiG NOS Zero Client FIBER 8GB RAM for VMWare (7148qvf-8840) // 400 EA

IV. Identification of the justification/rationale for limiting sources and demonstration of the contractor's unique qualifications to provide the required supply/service.

FAR 8.405-6 requires an ordering activity to justify its actions when restricting consideration of schedule contractors to fewer than required in FAR 8.405-1.

FAR 8.405-6(b)(1) "The item is particular to one manufacturer. A brand name item, whether available on one or more schedule contracts is particular to one manufacturer." Brand name specifications shall not be used unless the particular brand name, product, or feature is essential to the Government's requirements, and market research indicates other companies' similar products, or products lacking the particular feature, do not meet, or cannot be modified to meet, the agency's needs.

V. Determination by the ordering activity Contracting Officer that the order represents the best value consistent with FAR 8.404(d).

FAR 8.404(d) states GSA has already determined the prices of supplies and fixed-priced services and rates for services offered at hourly rates, under schedule contracts to be fair and reasonable. Therefore, ordering activities are not required to make a separate determination of fair and reasonable pricing, except for a price evaluation as required by 8.405-2(d). FAR 8.405-2(d) does not apply in this acquisition because hardware does not require a statement of work. By placing an order against a

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schedule contract using the procedures in FAR 8.405, the order represents the best value and the lowest overall cost alternative to meet the Government's needs. DFARS 208.404 Use of Federal Supply Schedules - "See DoD Class Deviation 2014-O0011- Determination of Fair and Reasonable Prices When Using Federal Supply Schedule Contracts, dated March 13, 2014. Effective immediately, contracting officers shall comply with the following policy, in lieu of FAR 8.404(d), Pricing, when using Federal Supply Schedules. This class deviation remains in effect until incorporated in the DFARS or otherwise rescinded." Prior to making award, in accordance with FAR 15.404-1, the Contracting Officer will determine that the proposed price is fair and reasonable.

VI. Description of the market research conducted and the results, or explain why market research was not conducted.

In accordance with DAFMAN 17-1203, para 3.6.3.1, published on 13 September 2022, all DAF hardware/software will be procured using applicable buying programs (in order of precedence):

- 1) DAF Enterprise License Agreements (ELA), (T-1) – Not on this list
- 2) DoD Joint Enterprise License Agreements (JELA), (T-1) – Not on this list
- 3) DoD Enterprise Software Initiative (ESI) Blanket Purchase Agreements (BPA), (T-1) – On this list, but only for Navy's use.
- 4) General Services Administration (GSA) 2nd Generation (2GIT) BPA schedules, (T-1) – Available on GSA 2GIT
- 5) Other vendor-authorized sources, (T-1) – Available on NASA SEWP

A search on the DoD ESI website revealed this particular hardware cannot be procured via the ELA, JELA, or ESI BPA buying programs. Additionally, a search through GSA 2GIT contracts revealed this specific hardware can be acquired under this contract platform.

Other mandatory government sources of agencies' inventories, Federal Prison's Industry and AbilityOne (FAR 8.0002), do not offer products to satisfy this requirement.

Market research was conducted in order of precedence IAW DAFMAN 17-1203 para 3.6.3.1, and it was determined this hardware is available on GSA 2GIT

The NAICS code 334111 is a manufacturing NAICS on the 2GIT Product BPA Ordering Guide, and is on the non-manufacturer rule waiver list. This is a commercial requirement and it is in the best interest of the Government to be competed as a 100% Small Business Set-Aside to GSA 2GIT. IAW 19.502-2(b), the Contracting Officer has reasonable expectation offers will be obtained from at least two responsible business concerns at fair market prices.

VII. Other facts supporting the justification.

N/A

VIII. Actions the agency may take to remove or overcome any barriers that led to the restricted consideration before any subsequent acquisition for the supplies or services.

The stakeholders in this acquisition are 21 CONS as the contracting agency and SSDP and SWAC as the end users. These items are on an Approved Product List that lists all types of software and hardware allowed in the end user's workspace at a

The approved products should be evaluated in the future to ensure all options that are allowable to the Government are listed. During this acquisition process, the customer was contacted to confirm if the NRO APL had been updated recently.

IX. Certification by the Contracting Officer.

As evidenced by my signature above, I have determined this document to be both accurate and complete to the best of my

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knowledge and belief.

X. Certification by the technical/requirements personnel.

As evidenced by my (our) signature(s) above, I (we) certify that any supporting data contained herein, which is my (our) responsibility, is both accurate and complete.

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GUIDANCE

I. Contracting Activity.

Fully identify the contracting activity responsible for the proposed contracting action. Include the name/phone number of the Contracting Officer. Specifically identify as a "Limited Sources" Justification. Identify purchase request number, if applicable.

II. Nature and/or description of the action being processed.

State whether the action is a new order or by modification to an existing order. Identify the GSA schedule number, the Blanket Purchase Agreement (BPA) number, the order number for the current action, and the Contactor(s). Indicate the Period of Performance (PoP). Also identify the type of the order/line items on the order (e.g. Firm Fixed Price, Labor Hour, etc).

III. Description of the supplies/services required to meet agency needs.

Specifically describe the supplies and/or services to be acquired including the price and quantity of each item in the order and state the total estimated value of the order. For services, state whether the services are performance-based and, if not, provide rationale for not being performance based. Also state the delivery/performance schedule/period for the items under the order.

IV. Identification of the justification/rationale for limiting sources and demonstration of the contractor's unique qualifications to provide the required supply/service.

This section is normally the most detailed part of the justification. To assist you in preparing this justification, an introductory sentence and the four circumstances of [FAR 8.405-6](#) that justify restricting the number of schedule holders are provided below. Select the appropriate cite, then provide, in narrative form, a detailed explanation supporting the specific circumstance cited for limiting the number of schedule holders.

(Introductory sentence) [FAR 8.405-6](#) requires an ordering activity to justify its actions when restricting consideration of schedule contractors to fewer than required in [FAR 8.405-1](#) or [FAR 8.405-2](#).

After selecting the appropriate cite, next select one of the four sentences below and provide a detailed explanation supporting the specific circumstance cited.

[FAR 8.405-6\(a\)\(1\)\(i\)\(B\)](#), "Only one source is capable of responding due to the unique or specialized nature of the work". *(Provide a detailed justification with supporting documentation, as evidence of the "unique or highly specialized" nature of the procurement. The user/customer typically provides this supporting information. Recommend attaching supporting documentation to the back of the document. General statements are not acceptable.)*

[FAR 8.405-6\(a\)\(1\)\(i\)\(C\)](#), "The new work is a logical follow-on to an original Federal Supply Schedule order provided that the original order was placed in accordance with the applicable Federal Supply Schedule ordering procedures." *The original order was not issued under sole source or limited source procedures. (Provide details on the previously competed order and explain how this order is a logical follow-on to that order. Explain fully the connection between the previous work/order and the current one. The user/customer typically provides this supporting information. General statements are not acceptable.)*

[FAR 8.405-6\(a\)\(1\)\(i\)\(A\)](#), "An urgent and compelling need exists, and following the ordering procedures would result in unacceptable delays." *(Provide a detailed justification with supporting documentation that explains the exact urgency of the requirement and the schedule impact if time were to be taken to follow FSS ordering procedures. The user/customer typically provides this supporting information. Recommend attaching supporting documentation to the back of the document. General statements of urgency are not acceptable.)*

[FAR 8.405-6\(b\)\(1\)](#), "The item is peculiar to one manufacturer. A brand name item, whether available on one or more schedule contracts, is an item peculiar to one manufacturer." *(Brand name specifications should not be used unless the particular brand name, product or feature is essential to the Government's requirements. Therefore, explain why the particular brand item is essential to the Government's requirements, and why other companies' similar items, or products lacking the particular feature, do not meet, or*

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cannot meet, or cannot be modified to meet, the agency's need. The user/customer typically provides this supporting information. General statements are not acceptable.)

V. Determination by the ordering activity Contracting Officer that the order represents the best value consistent with FAR 8.404(d).

This section needs to be tailored based upon whether the order is for supplies/services not requiring a statement of work ([FAR 8.405-1](#)) or if the order is for services requiring a statement of work ([FAR 8.405-2](#)).

For [FAR 8.405-1](#) orders the best value determination needs to be based upon the supply or service offered under MAS contracts by surveying at least three schedule contractors through the GSA Advantage! on-line shopping service, or by reviewing the catalogs or price lists of at least three schedule contractors. The ordering Contracting Officer's review of the Contractor's price list(s) and any price reductions sought is also required. (Contracting Officer should seek additional price discounts/concessions based on the specific order requirements on all orders over the micro-purchase threshold.) In addition to price, when determining best value, the ordering activity may consider, among other factors, past performance, special features of the supply or service required for effective program performance, trade-in considerations, probable life of the item selected as compared with that of a comparable item, warranty considerations, maintenance availability, environmental and energy efficiency considerations, and delivery terms.

When an order contains brand name specifications, the Contracting Officer shall post the Request for Quote (RFQ) along with the basis of the justification as required by [FAR 8.405-6\(b\)\(3\)](#).

For [FAR 8.405-2](#) orders for services requiring a statement of work, [FAR 8.405-2\(d\)](#) requires that an evaluation be performed based on the criteria provided to the schedule contractors. Therefore, the justification must address how the [FAR 8.404\(d\)](#) requirement for an evaluation of the proposed level of effort and mix of labor will be conducted and include a statement that the Contracting Officer will perform a price reasonableness determination as part of the best value determination.

VI. Description of the market research conducted and the results, or explain why market research was not conducted.

Discuss market research that was conducted among schedule holders and the market research results that led to the conclusion to go sole source or to limit the number of schedule holders to be solicited. The narrative in this section should provide a high level of confidence that the requirements of [FAR 8.405-1](#) and [FAR 8.405-2](#) could not be met. If no market research was conducted, state so and provide the rationale.

VII. Other facts supporting the justification.

When [FAR 8.405-6\(a\)\(1\)\(i\)\(C\)](#) is cited for an follow-on acquisition as the basis for the justification, include an estimate of the cost that would be duplicated and the basis and derivation of the estimate, or provide details on why a delay to solicit additional schedule holders would be unacceptable.

Provide any other facts supporting the Limited Sources Justification.

VIII. Actions the agency may take to remove or overcome any barriers that led to the restricted consideration before any subsequent acquisition for the supplies or services.

Describe all efforts to be taken to remove or overcome any barriers that preclude the agency from meeting the requirements of [FAR 8.405-1](#) and [FAR 8.405-2](#) before any subsequent acquisition for the supplies or services is made. If no actions are planned, so state and provide reasons.

IX. Certification by the Contracting Officer.

The contracting officer's signature on the signature page evidences that he/she has determined this document to be both accurate and complete to the best of his/her knowledge and belief.

X. Certification by the technical/requirements personnel

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As evidenced by their signatures on the signature page, the technical/requirements personnel have certified that any supporting data contained herein which is their responsibility is both accurate and complete.
